

3.110(g), and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63.** The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

WIEMERS, ET AL. VS. HOERNING, ET AL.

CASE NUMBER: 25CV-0208527

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs Christopher Wiemers and Michael Rooney and counsel Rooney Law Firm for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on August 25, 2025 and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiffs and counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63.** The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

9:00 a.m. – Review Hearings

CAPITAL ONE, N.A. VS. FORTNER

CASE NUMBER: 25CVG-00896

This collections action is on calendar for review regarding status of the case and to reset the court trial. The matter is at issue. **An appearance is necessary on today’s calendar.**

CHEATHON VS. DOHANUE

CASE NUMBER: 25CV-0208536

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than February 23, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

GAIGE VS. GREYHOUND LINES, INC, ET AL.

CASE NUMBER: 23CV-0203891

This matter is on calendar for review regarding status of removal to Federal Court. No status statement was filed. **An appearance is necessary on today’s calendar.**

HUNTER VS. OXFORD SUITES REDDING, ET AL.

CASE NUMBER: 25CV-0208594

This matter is on calendar for a trial setting conference. The matter is not at issue. Plaintiff has not filed a Proof of Service of Summons for all named defendants. The Court will issue an Order to Show Cause Re: Sanctions in the amount of \$250 to Plaintiff and counsel for failure to timely serve all defendants pursuant to CRC 3.110(b). Hearing on the Order to Show Cause will be on **Monday, September 21, 2026 at 8:30 a.m. in Department 63.** The clerk is directed to prepare the Order to Show Cause. The matter will also be on calendar on **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today’s calendar.**